



Appeal Decision

Site visit made on 23 June 2026

by Chris Mayes CMLI

an Inspector appointed by the Secretary of State

Decision date: 18th September 2026

Appeal Ref: 6006846

1 Kingswood Close, Boldon Colliery, South Tyneside NE35 9LG

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr & Mrs Stephen and Sharon Wilson against the decision of South Tyneside Council.
 - The application reference is 250347.
 - The development proposed is 'erection of a single, detached use class C3 dwellinghouse across two storeys, with 3 bedrooms and the formation of vehicular access onto Cotswold Lane, car parking and garden/curtilage areas. Resubmission with altered car parking arrangements'.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. Since the appeal was submitted the Council has adopted the South Tyneside Local Plan 2023-2040 (July 2026) (the LP). In light of this change in the development plan, the parties were invited to provide comments on the relevance of the newly adopted policies and any associated matters. I have taken those comments into account and have assessed the proposal against the policies of the adopted LP that are relevant to the determination of this appeal.
3. Furthermore, during the course of the appeal, a revised National Planning Policy Framework (the Framework) was published. As the revised Framework forms part of the policy context against which this appeal must be determined, the parties were invited to comment on any implications arising from the changes. I have had regard to the comments received in reaching my decision.

Main Issue

4. The main issue is the effect of the proposed development on highway safety, with particular regard to the introduction of a new vehicular access onto Cotswold Lane.

Reasons

5. This proposal follows an earlier application and appeal relating to the same site. The current scheme includes revisions to the parking and turning arrangements within the site, including the provision of two parking spaces and sufficient space for vehicles associated with the dwelling to manoeuvre and leave the site in a forward gear. These changes are intended to reduce the likelihood of vehicles reversing onto the highway and to accommodate visitor parking within the site. As these matters formed part of the Council's concerns in relation to highway safety, they are relevant to my assessment and are considered below.

6. The proposed access would be taken directly from Cotswold Lane, which functions as a local distributor road. Its primary role is to accommodate through-movements between different parts of the wider area. The road is subject to a 30mph speed limit and includes traffic calming measures, including speed humps. While these features influence vehicle speeds, they do not change the underlying function of the road as a local distributor road. This is also reflected in the general absence of direct residential frontages and the expectation of relatively uninterrupted traffic flow along its length.
7. In the vicinity of the appeal site, there is a concentration of highway features requiring drivers' attention. These include the nearby junction with Cinderford Close, a zebra crossing, and bus stops on both sides of the carriageway. In addition, hatched road markings within the carriageway act to separate opposing traffic flows in this section, reflecting the need to manage vehicle movements through what is already a sensitive part of the road.
8. Although visibility at the proposed access is shown to be acceptable, the suitability of an access in this location is not determined by visibility alone. The introduction of a private residential access would add a further point at which vehicles would enter, leave, slow or turn across or into the flow of traffic. This would occur in a location where drivers are already required to respond to several potential sources of conflict within a short stretch of road.
9. Taken together, the proposed access, even acknowledging likely trip numbers and reduced car usage as outlined in the Transport Advisory Note, would increase the overall level of interaction between vehicles, and between vehicles and pedestrians, in a part of the highway where movements are already more complex than along the remainder of Cotswold Lane. This would increase the potential for conflict and is a matter to which I attach significant concern.
10. I have considered the appellant's reliance on the principles set out in Manual for Streets, including its support for more permeable layouts and direct access onto urban roads. However, those principles are context-dependent and are most appropriately applied where the street environment is characterised by active frontages, lower traffic dominance and a strong sense of place. In this case, notwithstanding the presence of traffic calming measures, Cotswold Lane retains the function and characteristics of a local distributor road, with limited frontage development and a primary role in accommodating through-movements.
11. In that context, the introduction of a new private access would not reflect a transition to a lower-speed, street-based environment but would instead add a further point of vehicular interaction within an already sensitive section of highway. Moreover, the presence of a zebra crossing and nearby bus stops indicates that pedestrian movements are already concentrated in this location. The addition of a vehicle access at this point would increase the potential for conflict affecting those users, rather than supporting the type of environment envisaged by Manual for Streets. In these circumstances, the proposal would not provide a separate and independent vehicular access that would avoid prejudicing the safe operation of the highway.
12. The informal parking arrangement at the former Gladstone Terrace junction is not directly comparable to the proposed development. Vehicles in that location are already visible within the carriageway environment, rather than emerging from a

private residential curtilage, and the road layout and range of highway features differ materially. It does not therefore demonstrate that the introduction of a new access in this location would be safe.

13. Similarly, the absence of recorded accidents in the vicinity does not, in itself, demonstrate that the proposed arrangement would be safe. It reflects existing conditions, rather than the effects of introducing a new access into an already complex part of the highway and does not demonstrate that the development would achieve a safe and suitable access for all highway users.
14. I also do not accept that any potential reduction in vehicle speeds arising from increased driver awareness would amount to a highway safety benefit. Any such reduction in speed would be a response to the additional vehicle movements, features and potential sources of conflict associated with the proposed access. It would not therefore represent a highway safety benefit and, at best, would leave the overall effect neutral.
15. I acknowledge the amended parking and turning arrangements would reduce the likelihood of vehicles reversing onto the highway and would provide space for visitor parking within the site. However, while the provision of on-site parking would reduce the likelihood of parking associated with the dwelling taking place on the highway, it would not preclude it entirely. The proposal would nevertheless introduce a new dwelling with direct frontage and access onto Cotswold Lane, where none presently exists. Consequently, vehicle movements associated with occupants, visitors and deliveries would occur at this location. Having regard to the function of the road and the concentration of highway features in its immediate vicinity, the introduction of a new vehicular access would create an additional point of vehicular interaction and potential conflict in a location that is already sensitive in highway terms.
16. For the reasons given above, I conclude that the proposed development would have a harmful effect on highway safety, with particular regard to the introduction of a new vehicular access onto Cotswold Lane. As such, it would conflict with Policy 47 of the LP, which requires development to incorporate safe layouts that minimise conflict between highway users and provide suitable access arrangements. For the same reasons, it would conflict with national decision-making policies TR4(1)(c)(i) and TR6(4) in the Framework, which states that development should minimise the scope for conflict between pedestrians, cyclists and vehicles, and that development proposals should be refused where they would have an unacceptable impact on highway safety.

Other Matters

17. I have had regard to the absence of harm to character and appearance, living conditions, drainage and other technical matters. However, the absence of harm does not, in itself, attract positive weight and these matters are therefore neutral in my assessment.
18. The appeal site is located within the zone of influence of the Durham Coast Special Area of Conservation and Northumbria Coast Special Protection Area/Ramsar site, afforded protection under the Conservation of Habitats and Species Regulations 2017 (the Regulations) in recognition of the significance of their ecological features. However, as I have found the proposal unacceptable for other reasons, it is not

necessary for me to consider the matter further or to undertake an appropriate assessment.

19. I have had regard to the support expressed by interested parties, including comments about the condition and use of the site. However, those matters do not alter my conclusions on highway safety.

Planning Balance

20. The proposal would provide one additional dwelling on a windfall site within the urban area. Policy 13 of the South Tyneside Local Plan provides support for windfall and backland housing development where its criteria are satisfied and this weighs in favour of the proposal.
21. There is no dispute between the parties that the Council's most recently published Strategic Housing Land Availability Assessment identifies a 4.1-year supply of deliverable housing sites and that the Council's latest Housing Delivery Test figure is 53%. While the Council states that the recent adoption of the LP means that it can now demonstrate a 5-year supply of housing land, the appellants highlight the Council's historic housing delivery record.
22. Acknowledging this, given that there is no upper limit on the provision of housing, and that Policy H07 of the Framework states that substantial weight should be given to homes contributing to evidenced accommodation needs, I give the provision of an additional dwelling substantial weight in favour of the proposal. However, given that the proposal would deliver only one dwelling any benefits would be modest in scale.
23. I attach limited positive weight to the modest economic benefits associated with construction of the dwelling. The site lies within an accessible urban location, which supports the principle of making effective use of land. However, that is an ordinary policy objective rather than a benefit of such significance as to attract additional weight beyond the contribution of the dwelling itself. Moreover, while the appeal site is capable of accommodating an additional dwelling, the existing garden is not inherently vacant or under-utilised simply because further development could occur. Accordingly, I do not attach additional weight to the proposal on that basis alone.
24. I have also had regard to Policy S4 of the Framework that states that proposals within settlements should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework. Policy S4 goes on to identify circumstances in which the benefits of approving development are likely to be substantially outweighed by adverse effects. These include situations where the development would fail to comply with one of the national decision-making policies that state development should be refused in specific circumstances.
25. Policy TR6(4) of the Framework is one such national decision-making policy. It states that development proposal should be refused if they would have a severe adverse impact on the transport network or an unacceptable impact on highway safety, taking into account any mitigation measures. For the reasons set out in my main issue, I have found that the proposal would have an unacceptable impact on highway safety. Consequently, the proposal would fail to comply with Policy TR6(4), and this is a circumstance to which Policy S4(2)(c) applies.

26. Drawing these matters together, while the proposal would make a modest contribution towards housing supply via a windfall site and provide limited economic benefits, I have found that it would result in unacceptable harm to highway safety. In light of the conflict with policy TR6(4) of the Framework, Policy S4(2)(c) applies. Consequently, I find that the benefits of the proposal would be substantially outweighed by its adverse effects. Consequently, the proposal conflicts with Policy S4 of the Framework and the development plan when read as a whole.

Conclusion

27. The proposal conflicts with the development plan when read as a whole. The material considerations, including the Framework, do not indicate that the appeal should be determined other than in accordance with it. I therefore conclude that the appeal should be dismissed.

Chris Mayes

INSPECTOR